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DEED OF NOVATION OF THE INTERNATIONAL DISTRIBUTION AGREEMENT BETWEEN MONSTER ENERGY LIMITED, CENTURY BOTTLING COMPANY LIMITED AND COCA-COLA BEVERAGES UGANDA LIMITED

THIS DEED OF NOVATION (the "**Deed**") is entered into as of April 19, 2023, with a deemed effective date of 1 June 2022 (the "**Effective Date**") by and between (1) **MONSTER ENERGY LIMITED**, a company organised and existing under the laws of the Republic of Ireland, whose registered office is at South Bank House, Barrow Street, Dublin 4, Ireland ("**MEL**"), (2) **CENTURY BOTTLING COMPANY LIMITED**, a company incorporated and registered under the laws of Uganda, whose registered office is at Namanve Industrial Site, PO Box 3990, Kampala, Uganda ("**CBC**"), and (3) **COCA-COLA BEVERAGES UGANDA LIMITED**, previously RWENZORI BOTTLING COMPANY LIMITED, a company incorporated and registered in Uganda, whose registered office is Plot 592, Namanve, Industrial Area, Kampala, Uganda ("**CCBU**"), with respect to the following facts:

BACKGROUND

(A) MEL and CBC are parties to an International Distribution Agreement dated September 23, 2015 (the "**Agreement**").

(B) CCBU and CBC have represented to MEL that there has been or will be an amalgamation of CBC and CCBU (as represented in the 26 September 2022 letter to MEL from CCBU (a copy of which is attached to this Deed as Exhibit A)) (the "**Amalgamation**").

(C) As a result of the Amalgamation, the parties have therefore agreed to novate CBC's rights and obligations under the Agreement to CCBU in accordance with the terms of this Deed with effect from the Effective Date.

(D) CBC has requested MEL and The Coca-Cola Company ("**KO**") consent to CBC's novation of CBC's rights and obligations under the Agreement to CCBU, including, without limitation, all of CBC's rights and obligations under the Agreement arising after the Effective Date.

(E) MEL and KO will consent to the novation of CBC's rights and obligations under the Agreement to CCBU as of the Effective Date pursuant to Section 23 of the Agreement on the terms set forth in this Deed, provided CBC and CCBU agree to the terms and conditions set forth in this Deed.

AGREED TERMS

1. DEFINITIONS AND INTERPRETATION

1.1 Unless otherwise provided in this Deed, capitalized terms set forth in this Deed shall have the meaning ascribed to them in the Agreement.

1.2 The Background forms part of this Deed and any reference to "this Deed" includes the Background.

DS Melky

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1.3 The parties acknowledge and agree that, with effect from the Effective Date, unless the context otherwise requires references in the Agreement to "the Agreement" shall be to the Agreement as amended by this Deed.

2. NOVATION

With effect from the Effective Date:

2.1 CBC transfers all its rights and obligations under the Agreement to CCBU.

2.2 CCBU shall enjoy all the rights and benefits of CBC under the Agreement. CCBU agrees to perform the Agreement and be bound by its terms in every way as if it were the original party to it in place of CBC, including, without limitation, paying to MEL all amounts due and owing by CBC under the Agreement in full, without any reduction or set off.

2.3 CBC hereby absolutely, unconditionally and irrevocably guarantees, upon demand, to and for the benefit of MEL, the full, timely and complete performance of CCBU under the Agreement.

2.4 CCBU shall assume, perform and be liable for any and all of CBC's rights, duties and obligations under the Agreement and all of MEL's and CCBU's respective rights, duties and obligations under the Agreement shall be governed exclusively by the terms of the Agreement, including, without limitation, CCBU's obligation to pay to MEL all amounts due to MEL under Section 2.2 of this Deed.

2.5 MEL agrees to perform the Agreement and be bound by its terms in every way as if CCBU were the original party to it in place of CBC.

2.6 All references to CBC in the Agreement shall be read and construed as references to CCBU.

3. REPRESENTATIONS AND WARRANTIES

3.1 CCBU represents and warrants to MEL that (a) CCBU is a Primary KO Distributor, (b) CCBU has the absolute and unrestricted right, power, authority and capacity to execute and deliver this Deed and to perform its obligations under this Deed, (c) the execution, delivery and performance of this Deed by CCBU will not cause or require CCBU to breach any obligation to, or any agreement or confidence with, any other Person, (d) the representations contained in the letter from Coca-Cola Beverages Africa Proprietary Limited to MEL dated 26 September 2022 attached as Exhibit A are accurate including, without limitation, that (i) the shareholding in CCBU is 100% owned by Coca-Cola Sabco (East Africa) Limited (ii) CCBU is engaged exclusively in commercial activities and its activities under the Agreement have been, and will be, exclusively commercial activities; (iii) as a result of the Amalgamation, CCBU will, by operation of law, automatically become the owner of all assets currently owned by CBC and will remain liable and responsible for all of the liabilities and obligations of CBC including all the rights and obligations of CBC under the Agreement; and (iv) except as provided in this Deed, no consent (express, implied, deemed or otherwise) is granted by MEL.

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3.2 CBC represents and warrants to MEL that (a) the Agreement is in full force and effect, (b) CBC has not previously assigned or otherwise transferred any portion of its interest with respect to the Agreement including without limitation to any sub-distributor, (c) the Agreement, together with its amendments and addendums, if any in existence as of the date hereof, has not been modified, amended, or revised, orally or in writing by CBC, (d) CBC has the absolute and unrestricted right, power, authority and capacity to execute and deliver this Deed and to perform its obligations under this Deed, and (e) the execution, delivery and performance of this Deed by CBC will not cause or require CBC to breach any obligation to, or any agreement or confidence with, any other Person, (f) other than the Amalgamation, there have been no other corporate changes to CBC, including, without limitation, changes to its management, operations or structure, and (g) neither MEL nor CBC is in default under the Agreement as of the date of this Deed. Nothing contained in this Deed shall release CBC or CCBU for liability for damages for any breach of the Agreement prior to the Effective Date.

3.3 CCBU and CBC represent and warrant to MEL that neither the officers nor directors of either CCBU or CBC have any actual knowledge of any claims arising from or relating to the Agreement.

4. CLAIMS

CBC, on its own behalf and on behalf of its Affiliates and their respective representatives, agents, successors, assigns, officers, directors, employees, former employees, attorneys, and all persons acting by, through, under or in concert with any of them, and each of them (collectively, with CBC, the "CBC Parties") covenants not to bring any claims, demands, actions, causes of action, defenses and rights, in law or in equity, in the nature of an administrative proceeding or otherwise, and which the CBC Parties have or may have, and which have been or could have been asserted, against MEL and its Affiliates and the respective representatives, agents, successors, assigns, officers, directors, employees, former employees, attorneys of each of the foregoing and all persons acting by, through, under or in concert with any of them, and each of them, arising under or in any way relating to the Agreement (the "Claims"). The CBC Parties waive all rights affecting the validity and enforceability of the foregoing releases to the extent necessary under applicable law. CBC and CCBU acknowledge and agree that any Claims shall be brought solely and exclusively by CCBU.

5. MISCELLANEOUS

5.1 The provisions of Section 25 (*Governing Law*), Section 26 (*Arbitration*), Section 31 (*Interpretation*), Section 39 (*Controlling Language*), Section 41 (*Further Assurances*), Section 42 (*Counterparts*), and Section 43 (*Confidentiality*) of the Agreement shall apply to this Deed as though set out in full herein. This Deed may be modified only by a contract in writing executed by the party to this Deed against whom enforcement of such modification is sought. With the exception of the Agreement, this Deed supersedes all prior oral and written discussions and communications between MEL, CCBU, and CBC, and constitutes the parties' sole and exclusive understanding, in each case with respect to the subject matter hereof.

5.2 Except as expressly provided in this Deed, nothing contained in this Deed will be construed as (a) amending, modifying or novating, and/or (b) MEL consenting to any assignment, delegation or other

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transfer of any rights or obligations under, the Agreement and/or any other agreement between MEL (or any of its Affiliates), on the one hand, and CBC, CCBU, and/or KO (or any of their respective Affiliates), on the other hand.

[*Signature pages follow.*]

DS
Melky

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SIGNATURE PAGE TO DEED OF NOVATION OF THE INTERNATIONAL DISTRIBUTION AGREEMENT BETWEEN MONSTER ENERGY LIMITED, CENTURY BOTTLING COMPANY LIMITED AND COCA-COLA BEVERAGES UGANDA LIMITED

IN WITNESS whereof this Deed has been duly executed as a **DEED** on the date first above written by the parties hereto.

Executed as a **DEED** by **MONSTER ENERGY LIMITED**, a company incorporated in Ireland, by persons who in accordance with the laws of Ireland, are acting under the authority of and are duly authorised to represent the company:

.....	Rodney Sacks
Authorised signatory's signature	Name
.....	.....
Authorised signatory's signature	Name

Executed as a **DEED** by **CENTURY BOTTLING COMPANY LIMITED**, acting by two directors:

DocuSigned by: 241C58DB3E49445...	Melkamu Abebe
Director's signature	Name
.....	.....
Director's signature	Name

Executed as a **DEED** by **COCA-COLA BEVERAGES UGANDA LIMITED**, acting by two directors:

DocuSigned by: 241C58DB3E49445...	Melkamu Abebe
Director's signature	Name
.....	.....
Director's signature	Name

KO Consent:

KO hereby consents to the novation of the Agreement pursuant to the terms of this Deed.

Executed as a **DEED** by **THE COCA-COLA COMPANY**, acting by two authorized signors:

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Mark Randazza

Authorized Signatory

Mark Randazza

Name

Stacy L Apter

Authorized Signatory

Stacy L. Apter

Name

DS Melky

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EXHIBIT A

Coca-Cola Beverages Africa Proprietary Limited

Company Registration No: 2016/[illegible]/07

Waterfront Business Park
Building 7, Purnream Street
Humewood
Port Elizabeth 6001
PO Box 3500
North End
Port Elizabeth 6056

T +27 41 365 4111
F +27 41 374 4265

28 September 2022

Monster Energy Limited
South Bank House
Barrow Street
Dublin 4
Republic of Ireland

[redacted]

Dear Catriona and Shanan,

RE: UGANDA DISTRIBUTION AGREEMENTS

In November 2014, The Coca-Cola Company, SABMiller plc and Gutsche Family Investments announced the combination of their bottling operations of non-alcoholic ready-to-drink beverage businesses in Southern and East Africa. The merger was structed in two phases with the first phase including operations in Comoros, Ethiopia, Ghana, Kenya, Mayotte, Mozambique, Namibia, South Africa, Tanzania and Uganda ("Phase 1 Transaction"). The Phase 1 Transaction was approved by the Competition authorities and 1 July 2016 marked the first day of operation for Coca-Cola Beverages Africa Proprietary Limited ("CCBA").

During this time, Monster products in Uganda were distributed by Century Bottling Company ("CBC"), a 100% subsidiary of Coca-Cola Sabco (East Africa) Limited ("CCSEA") based in Dubai, which in turn is a 100% subsidiary of Coca-Cola Beverages Africa Proprietary Limited. With effect from 1 June 2022, and with the authorisation of The Coca-Cola Company, CBC has amalgamated with Rwenzori Bottling Company Limited ("RBC"), another 100% owned subsidiary of CCSEA, with RBC being the surviving entity.

RBC remains a 100% subsidiary of CCSEA. On 22 July 2022, RBC changed its name to Coca-Cola Beverages Uganda Limited - a copy of the change of name certificate is attached.

Yours faithfully,

T. Makaula

Thobeka Makaula
CCBA Group Head of Legal

Coca-Cola Beverages Africa

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